

TENTATIVE RULINGS**DEPT W15****JUDGE RICHARD Y. LEE**

Date: May 28, 2026

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's [website](#) for rules and procedures for court reporters obtained by the Parties.

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5915. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Do not call the department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling. The Court interprets a party's failure to appear at the hearing as a waiver of oral argument.

Remote Appearances: Department W15 permits non-evidentiary proceedings, including law and motion, to be conducted remotely. *If you are appearing remotely:* (1) all counsel and self-represented parties appearing for such hearings **must**, prior to 1:30 p.m. on Thursday, check-in online via the Court's civil video appearance website ([link here](#)); and (2) participants will then be prompted to join the courtroom's Zoom hearing session.

Local Rule 375(c): Attorneys **shall** comply with Local Rule 375(c) which governs "Decorum for In-Person and Remote Court Appearances." ([Local Rule 375\(c\)](#)) Specifically, the video and audio must be turned on and functioning during the hearing; and attorneys are expected to wear appropriate business attire.

#		
100	James Bay Resources Limited vs. Lockett & Horwitz, 23-01313001	Plaintiffs, James Bay Resources Limited and Stephen Shefsky ("Plaintiffs"), moves for an order imposing sanctions against Defendant, Lockett & Horwitz ("L&H"), and its counsel Bernard J. Jasper in the amount of \$20,000 pursuant to Code of Civil Procedure section 128.5. <i>21-Day Safe Harbor Period</i> Code of Civil Procedure section 128.5 provides in part: If the alleged action or tactic is the making or opposing of a written motion . . . that can be withdrawn or

		appropriately corrected, a notice of motion shall be served as provided in Section 1010, but shall not be filed or presented to the court, unless 21 days after service of the motion or any other period as the court may prescribe, the challenged action or tactic is not withdrawn or appropriately corrected.” (Code Civ. Proc. § 128.5(f)(1)(B).) Plaintiffs’ counsel provides that on October 9, 2025, Plaintiffs’ counsel sent Mr. Jasper a copy of the draft motion for sanctions and advised him that Plaintiffs would proceed with filing it if L&H did not withdraw the Stay Motion. (Declaration of Jeanine Zalduendo, ¶ 13, Exs. 8-9.) However, the draft motion for sanctions did not give formal notice, and did not specify a hearing date. (See Ex. 9 to Zalduendo Decl.) Accordingly, the failure to specify when the motion would be made renders it fatally defective. <i>Merits</i> Nevertheless, even assuming the motion was made after the 21-day safe harbor period, the motion does not establish that the Stay Motion was brought in subjective bad faith. While the Court agrees that there was no competent evidence to support the assertion that Armstrong lacked capacity or was unable to prepare a defense in this action or to participate meaningfully in this litigation due to “long form COVID”, and/or a “major concussion”, or that Armstrong was “struggling with any of the basic challenges of daily life.” However, there is insufficient evidence that the Stay Motion was brought for an improper purpose or subjective bad faith. In reply, Plaintiffs submit a Supplemental Declaration of Jeanine Zalduendo. The general rule of motion practice is that new evidence is not permitted with reply papers, and should only be allowed in an exceptional case. (<i>Jay v. Mahaffey</i> (2013) 218 Cal.App.4th 1522, 1537.) If allowed, the other party should be given an opportunity to respond. (<i>Id.</i> at p. 1538.) There is an exception for points that are strictly responsive to arguments made for the first time in opposition. (<i>Golden Door Properties,</i>
--	--	---

		<i>LLC v. Superior Court of San Diego County</i> (2020) 53 Cal.App.5th 733, 774.) This evidence is not strictly responsive to arguments made for in opposition, and was not previously presented to the Court. The Court therefore declines to consider this evidence which was presented for the first time on reply. Based on the foregoing, Plaintiffs' motion for sanctions is DENIED. <i>L&H to give notice.</i>
101	Haines vs. Sea Aira Mobile Home Park #3 LP, 24-01413277	Plaintiff, Cliff Haines, in pro per, moves for an order vacating the dismissal of his civil complaint and the earlier unlawful detainer judgment obtained by "Sea-Aira Mobile Home Park" ("Sea-Aira"). Plaintiff contends that he held legal title to a mobile home, but that without naming or serving Plaintiff, Sea-Aira initiated an unlawful detainer proceeding against other parties and obtained a default judgment. Plaintiff asserts that the unlawful detainer judgment is void on its face for lack of jurisdiction as Plaintiff was the true owner and was omitted entirely, such that the Court should vacate this judgment. Plaintiff also contends that Sea-Aira then used this void judgment to refuse to approve a lease for the home and blocked Plaintiff's attempts to sell his mobile home. Plaintiff asserts that he dismissed this case because Sea-Aira's representative and park manager, Drew Helms, stated that the park would not approve the lease of Plaintiff's buyer unless Plaintiff dismissed his lawsuit, and that Plaintiff signed the dismissal only because he would lose the sale and his money otherwise. Plaintiff thus asserts that the dismissal was procured through coercion and duress and that the court may relieve Plaintiff from a dismissal resulting from extrinsic fraud or duress under Code of Civil Procedure section 473(b). Defendant, Sea-Aira Mobile Home Park No. 3, L.P., a Limited Partnership, dba Sea Aira Estates ("Defendant") objects to Plaintiff's motion in that it seeks to overturn a

		judgment in another case (# 30-2024-01404345-CL-UD-CJC) by motion under this case number. Defendant asserts that any challenge to that judgment would have to be made in relation to that case number, by a party to that action, and would regardless be untimely in 2026. Defendant also contends that Plaintiff's request for relief under Code of Civil Procedure section 473(b) is untimely; that Plaintiff's motion identifies no excusable neglect, mistake or surprise that resulted in the dismissal; and that while Plaintiff argues that the dismissal was obtained by coercion and "extrinsic" fraud, the statements made by counsel for Defendant were both legally and factually accurate. Defendant additionally asserts that even if any statement was untrue, the alleged fraud or coercion would not be grounds to vacate the dismissal because it was intrinsic to the Complaint Plaintiff dismissed. Defendant's objection to Plaintiff's "Notice of Filing Evidence in Support of Plaintiff's Claims" filed on November 7, 2025 (ROA 31, 33, 35) as lacking foundation is SUSTAINED. With regards to the earlier unlawful detainer judgment, Plaintiff provides no authority permitting this Court to vacate a judgment of another court. The court may "disregard conclusory arguments that are not supported by pertinent legal authority or fail to disclose the reasoning by which [a party] reached the conclusion [he or she] wants [the court] to adopt." (<i>United Grand Corp. v. Malibu Hillbillies, LLC</i> (2019) 36 Cal.App.5th 142, 153 citing <i>City of Santa Maria v. Adam</i> (2012) 211 Cal.App.4th 266, 287.) Therefore, the Court DENIES Plaintiff's request that the Court vacate a judgment entered in an unlawful detainer action. In addition, on September 19, 2024, Plaintiff filed a Request for Dismissal, with prejudice, of his Complaint and the entire action of all parties and all causes of action that was entered that same date. (See ROA 21.) Plaintiff filed the instant motion to vacate dismissal on November 7, 2025, nearly 14 months after the entry of dismissal. The
--	--	--

	instant motion for relief under Code of Civil Procedure section 473(b) is therefore untimely. Plaintiff seeks relief based on extrinsic fraud or duress which is not a basis for relief under Code of Civil Procedure section 473(b). This being said, "even when relief is no longer available under statutory provisions, a trial court generally retains the inherent power to vacate a default judgment or order on equitable grounds where a party establishes that the judgment or order was void for lack of due process [citation] or resulted from extrinsic fraud or mistake. [Citation.]" (<i>County of San Deigo v. Gorham</i> (2010) 186 Cal.App.4th 1215, 1228.) Here, Plaintiff provides that in July 2024, his second agent, Rick Olsen Sr. of J&R Mobile said Helms would not approve the lease unless he dropped his lawsuit, that Mr. Olsen drafted a dismissal form and required Plaintiff to meet him at the courthouse to sign it before Plaintiff could receive his check, and that Plaintiff only signed the dismissal because he was told the sale would be canceled and he would "lose the funds," and that if he did not sign the dismissal, his home would have been auctioned off and he would receive nothing. (Declaration of Cliff Hanes, ¶ 6.) Plaintiff does not demonstrate that these assertions were fraudulent, namely, that Helms did not approve the lease after the action was dismissed, and Plaintiff indicates that he received "his check" after he signed the dismissal. The statements that sale would be canceled and he would "lose the funds," and that if he did not sign the dismissal, his home would have been auctioned off and he would receive nothing are not clearly attributable to Defendant. Additionally, even assuming the purported fraudulent statements are attributed to Defendant, including that Helms would not approve the lease unless Plaintiff dropped the lawsuit, and/or that the sale would be cancelled and Plaintiff would "lose the funds" if Plaintiff did not sign the dismissal, and/or that Plaintiff's home would be auctioned off and he would receive nothing, are intrinsic as the alleged fraud goes to the merits of
--	---

		Plaintiff's claims for illegal seizure of property and his right to the home and ability to sell the home which were at issue in the Complaint. Further, Plaintiff does not show a meritorious case or diligence in seeking to set aside or vacate the dismissal after Plaintiff filed the request for dismissal nearly 14 months before the instant motion to vacate was filed. Based on the foregoing, Plaintiff's motion to vacate the dismissal is DENIED. <i>Defendant to give notice.</i>
102	Rodriguez vs. Saddleback Park Villas Condominium Association, Inc., 25-01503635	The motion by Plaintiff Juan Manual Rodriguez to Set Aside Dismissal is GRANTED. Here, Plaintiff contends the dismissal of the entire action was the result of a clerical mistake. On or about August 27, 2025, Plaintiff's counsel's filed a Request for Dismissal (Judicial Council Form CIV-110), which was intended to dismiss only Defendant Rafael Romero and Defendant Elizabeth Serrano. (Langley Decl. ¶ 2; see also ROA 11.) Section 1 of the Request for Dismissal states: "TO THE CLERK: Please dismiss this action as follows:" and provides several options that may be checked. (See ROA 11.) Plaintiff's Request for Dismissal marked the checkbox next to "Complaint" and the checkbox next to "Other", specifying "RAFAEL ROMERO, an individual and ELIZABETH SERRANO, an individual only". (Id.) The court clerk marked the checkbox that the "Dismissal was entered as requested on (date): 08/27/2025." (ROA 11.) A dismissal of the entire action was entered on September 17, 2025. (Langley Decl. ¶ 5.) Plaintiff's counsel did not intend to dismiss the entire case and contends that the Court's record does not reflect Plaintiff's intent. The court notes that there is no entry in the docket reflecting that the dismissal of the entire action was entered on 9/17/2025. The court finds that the 8/27/2025 dismissal was entered as the result of a clerical error that was facilitated by Plaintiff's ambiguous Request for Dismissal. As such, the motion is

		GRANTED and the court sets aside the dismissal entered on August 27, 2025. The court sets a Case Management Conference for August 13, 2026 at 1:30 p.m. <i>Plaintiff to give notice.</i>
103	Doe vs. City of Santa Ana, 24-01405644	Rosie Zilifyan ("Moving Attorney") moves to be relieved as counsel of record for plaintiff Jane Doe. The Court notes that no proof of service has been filed with the moving papers. Therefore, it is unclear whether all parties have been properly served. The Court further notes that the moving papers do not have the correct address where the hearing on the motion to be relieved as counsel will be held. Thus, even if the moving papers have been properly and timely served on the client and all parties who have appeared, the notice of motion would be deficient. In light of the above, the motion to be relieved as counsel is DENIED without prejudice. <i>Moving Attorney to give notice.</i>
104	Montoya vs. FCA US, LLC., 24-01445674	Defendants, FCA US LLC and Tuttle-Click, Inc. (collectively "Defendants"), move to compel Plaintiff Maria Montoya's deposition and production of documents pursuant to Code of Civil Procedure section 2025.450. In opposition, Plaintiff represents that the parties resolved the issues raised in the motion through further meet and confer efforts, and that Plaintiff has provided deposition availability and agreed to appear for deposition. (Washington Decl., ¶¶ 3-4, Ex. 1.) Plaintiff therefore contends the motion is moot, but does not oppose an order setting a deposition date. Although the parties appear to have resolved the discovery dispute through further meet and confer efforts, Plaintiff has not yet appeared for deposition. Accordingly, an order compelling Plaintiff's deposition is appropriate to ensure completion of discovery and avoid further scheduling disputes.

		Thus, the motion is GRANTED. Plaintiff is ordered to appear for deposition on a mutually agreed-upon date within 30 days. <i>Defendants to give notice.</i>
105	Doe vs. Doe 1, 25-01495743	Defendant Nancy Williams moves for a protective order staying all merits discovery pending adjudication of defendant's Demurrer to plaintiff John WA Doe's First Amended Complaint (FAC) and permitting only narrowly tailored discovery regarding statute of limitations issues. Defendant argues that a protective order staying any discovery not related to the statute of limitations on plaintiff's claims should be stayed pending resolution of the pleadings because allowing discovery into sensitive and private issues when plaintiff's claims may be time-barred would expose her to unwarranted annoyance, embarrassment, oppression, undue burden, and undue expense. Defendant argues that it is highly likely that plaintiff discovered the link between his claimed injuries and the alleged abuse years ago when he began therapy in 2000, such that his claims are likely time-barred. Defendant cites no authority in support of the request for a stay pending resolution of a demurrer. Indeed, unlike the anti-SLAPP statute, which imposes a stay on discovery after a special motion to strike is filed, the demurrer statutes impose no such stay. (See Code Civ. Proc., §§ 425.16(g), 430.10, et seq.) Further, a plaintiff is entitled to reasonable discovery even if a demurrer to his or her pleading has been sustained with leave to amend. (<i>See Budget Finance Plan v. Superior Court</i> (1973) 34 Cal.App.3d 794, 796-798.) It follows that a plaintiff must be entitled to conduct discovery, within the time limits set forth in Code of Civil Procedure sections 2025.210, 2030.020, and 2031.020, after a demurrer has been filed and before it has been heard. Moreover, defendant has not supported any claim of unwarranted annoyance, embarrassment, oppression, undue burden, or expense. While defendant's counsel asserts

		that the written discovery propounded by plaintiff seeks information regarding topics such as separation, romantic relationships, and conversations about sexual abuse, defendant does not argue that these topics are irrelevant to plaintiff's claims or that the discovery was served for some improper purpose such as to cause annoyance or embarrassment without any relation to the claims raised. Thus, while the written discovery may cause some annoyance or embarrassment, defendant has failed to show that such annoyance or embarrassment would be unwarranted. Further, defendant presents no evidence regarding undue burden or expense. Defendant's Motion rests upon the assertion that plaintiff likely discovered his injuries before the time alleged in the FAC because he received therapy treatment beginning in 2000 and therefore had "ample opportunity" to discovery any alleged causal connection many years earlier. The Court is not inclined to stay discovery for reasons based purely on defendant's speculation. In light of the above, the Motion for Protective Order is DENIED. Defendants' Demurrer to Complaint filed on November 10, 2025 is taken OFF CALENDAR as MOOT, in light of plaintiff's filing of the FAC. The Demurrer to First Amended Complaint filed on February 18, 2026 remains set for September 10, 2026. <i>Moving party to give notice.</i>
106	Hernandez vs. State of California, 23-01355122	Cross-Defendant, Orange County Transportation Authority ("OCTA"), moves for an order sustaining the demurrer, without leave to amend, to the Cross-Complaint of Del Cerro Mobile Estates ("Del Cerro") filed on July 22, 2024, and each of the five causes of action therein for failure to plead facts to support the cause of action and for uncertainty, and dismissing the action as to OCTA. At issue is Del Cerro's first cause of action for total or comparative equitable indemnity, second cause of action for contribution, third cause of action for declaratory relief, fourth cause of action for express indemnity, and fifth cause of action for comparative fault.

		<i>Late Opposition</i> OCTA contends that Del Cerro's opposition was untimely and should be disregarded. Specifically, OCTA asserts that any opposition was due no later than May 14, 2026, and Del Cerro did not serve its opposition until May 15, 2026. While a paper may not be rejected for filing on the ground that it was untimely submitted for filing, the court, in its discretion, may refuse to consider a late filed paper. (California Rules of Court, rule 3.1300(d).) If the court does so, the minutes or order must so indicate. (<i>Ibid.</i>) In determining whether to receive an untimely filed document, "trial courts must consider the specific contexts in which such motions arise and should employ a flexible rather than rigid or formalistic approach to decisionmaking." (<i>Kapitanski v. Von's Grocery Co.</i> (1983) 146 Cal.App.3d 29, 32-33.) "An attorney's neglect in untimely filing opposing papers must be evaluated in light of the reasonableness of the attorney's conduct. [Citation.]" (<i>Id.</i> at p. 33.) "Also pertinent are the effects of strict enforcement on the rights of the parties and the furtherance of justice. [Citations.]" (<i>Ibid.</i>) Here, the opposition was filed and served one day late. As OCTA has filed a timely and substantive reply, the Court considers Del Cerro's opposition. <i>Compliance with Government Tort Claims Act</i> OCTA contends Del Cerro has neither alleged nor can truthfully allege timely compliance with the Government Claims Act or whether Del Cerro was served with Defendant/Cross-Complainant Placentia-Yorba Linda Unified School District's ("PYLUSD") cross-complaint on May 13 or May 15, 2024, its claims are procedurally deficient and legally barred Del Cerro contends that the FAXC adequately pleads compliance with the Government Claims Act as it accurately states that timely claims were filed in January and September 2025, that the date of service of the PYLUSD Cross-Complaint on Del Cerro was incorrectly alleged in the FAXC, that in fact, Del Cerro was served with PYLUSD's Cross-Complaint
--	--	---

		on May 20, 2025, and thus, that the written claim Del Cerro submitted in September 2025 was timely and in compliance with the Government Tort Claims act based on the May 20, 2025 date on which Del Cerro was served with PYLUSD's Cross-Complaint. "Suits for money or damages filed against a public entity are regulated by statutes contained in division 3.6 of the Government Code, commonly referred to as the Government Claims Act." (<i>DiCampli-Mintz v. County of Santa Clara</i> (2012) 55 Cal.4th 983, 989.) "Section 905 requires that, subject to exceptions not present here, 'all claims for money or damages against local public entities' must be presented in accordance with Chapter 1 (commencing with Section 900) and Chapter 2 (commencing with Section 910)' of the Government Code." (<i>Id.</i> at p. 990.) " " "Local public entity" includes a county, city, district, public authority, public agency, and any other political subdivision or public corporation in the State" [Citation.]" (<i>Ibid.</i>) The Fourth District Court of Appeal in <i>J.J. v. County of San Diego</i> (2014) 223 Cal.App.4th 1214 explained the claims presentation requirement as follows: "The Government Claims Act (§ 810 et seq.) 'establishes certain conditions precedent to the filing of a lawsuit against a public entity. As relevant here, a plaintiff must timely file a claim for money or damages with the public entity. (§ 911.2.) The failure to do so bars the plaintiff from bringing suit against that entity. (§ 945.4.)' (<i>State of California v. Superior Court</i> (2004) 32 Cal.4th 1234, 1237[13 Cal.Rptr.3d 534, 90 P.3d 116].)" '[T]he claims presentation requirement applies to all forms of monetary demands, regardless of the theory of the action....' [Citation.] 'The policy underlying the claims presentation requirements is to afford prompt notice to public entities. This permits early investigation and evaluation of the claim and informed fiscal planning in light of prospective liabilities.' (<i>Ibid.</i>) "Claims for personal injury must be presented not later than six months after the accrual of
--	--	---

	the cause of action.... (§ 911.2, subd. (a).) Timely claim presentation is not merely a procedural requirement, but is a condition precedent to the claimant's ability to maintain an action against the public entity. (<i>Shirk v. Vista Unified School Dist.</i> (2007) 42 Cal.4th 201, 209 [64 Cal.Rptr.3d 210, 164 P.3d 630].) 'Only after the public entity's board has acted upon or is deemed to have rejected the claim may the injured person bring a lawsuit alleging a cause of action in tort against the public entity.' (<i>Ibid.</i>) "The failure to timely present a claim to the public entity bars the claimant from filing a lawsuit against that public entity. (<i>City of San Jose v. Superior Court</i> (1974) 12 Cal.3d 447, 454[115 Cal.Rptr. 797, 525 P.2d 701].) Moreover, because the purpose of the claims is not 'to prevent surprise [but rather] is to provide the public entity sufficient information to enable it to adequately investigate claims and to settle them, if appropriate, without the expense of litigation ... [citations][,] ... [i]t is well-settled that claims statutes must be satisfied even in face of the public entity's actual knowledge of the circumstances surrounding the claim. Such knowledge—standing alone—constitutes neither substantial compliance nor basis for estoppel.' (<i>Id.</i> at p. 455[115 Cal.Rptr. 797, 525 P.2d 701].)" (<i>California Restaurant Management Systems v. City of San Diego</i> (2011) 195 Cal.App.4th 1581, 1591–1592, 126 Cal.Rptr.3d 160.) (<i>J.J. v. County of San Diego</i> (2014) 223 Cal.App.4th 1214, 1219.) Government Code section 911.2 states, in part: "[a] claim relating to a cause of action for death or for injury to person or to personal property . . . shall be presented as provided in Article 2 (commencing with Section 915) not later than six months after the accrual of the cause of action." (Govt. Code § 911.2.) "For the purpose of computing the time limits prescribed by Sections 911.2, 911.4, 945.6, and 946.6, the date of the accrual of a cause of action to which a claim relates is the date upon which the cause of action would be
--	--

	deemed to have accrued within the meaning of the statute of limitations which would be applicable thereto if there were no requirement that a claim be presented to and be acted upon by the public entity before an action could be commenced thereon. However, the date upon which a cause of action for equitable indemnity or partial equitable indemnity accrues shall be the date upon which a defendant is served with the complaint giving rise to the defendant's claim for equitable indemnity or partial equitable indemnity against the public entity." (Gov. Code § 901, emphasis added.) "The limitation period is itself triggered by service of the complaint against which indemnity would be sought." (<i>Greyhound Lines, Inc. v. County of Santa Clara</i> (1986) 187 Cal.App.3d 480, 485.) "A plaintiff suing the state or local public entity must allege facts demonstrating either compliance with the claims presentation requirement or an excuse for noncompliance as an essential element of the cause of action. [Citations.]" (<i>Ovando v. County of Los Angeles</i> (2008) 159 Cal.App.4th 42, 65.) "The plaintiff must prove compliance with the claim presentation requirement, or establish an excuse for noncompliance, to establish the defendant's liability. [Citation.]" (<i>Ibid.</i>) Here, the FAXC alleges that "previously", a Complaint was filed by Plaintiff, Julian Celestino Hernandez, which alleges that Plaintiff was riding a bicycle and was struck by a vehicle operated by Defendant Moises Cuevas, identified by Plaintiff as an employee of the County of Orange, City of Placentia, and PYLUSD, and the FAXC incorporates Plaintiff's Complaint without admitting the truth of any allegations set forth therein. (FAXC, ¶ 12.) It is alleged that "[o]n or about May 13, 2024, Del Cerro was served with the Cross-Complaint of PYLUSD, thereby tendering claims which in whole or in part sought to impose derivative liability upon Cross-Complainant arising out of the subject incident." (FAXC, ¶ 13.) It is also alleged that on July 22, 2024, Del Cerro filed its original cross-complaint for indemnity and contribution against OCTA for loss or damage that may be incurred as a result of the claims
--	--

		by Plaintiff or the claim of PYLUSD against Del Cerro. (FAXC, ¶ 14.) It is additionally alleged, “[w]ithout conceding the necessity of a claim, on or about January 7, 2025, and again on September 19, 2025, [Del Cerro] presented to OCTA a written claim pursuant to Government Code sections 910 and 911.2 in order to comply with any statutory requirements which Cross-Defendants may seek to apply to this Cross-Complainant, and timely made such claims” (FAXC, ¶ 17.) It is further alleged, “[w]ithout conceding the application of Government Code sections 901 and 911, or any other provision of the Government Code, or that a claim was or is required prior to actual loss or damage(s) incurred, and in the alternative, Cross-Complainant alleges that OCTA is estopped from asserting any alleged untimeliness of claim presentation.” (FAXC, ¶ 18.) First, there is no dispute that OCTA is a public entity. Del Cerro asserts that the FAXC erroneously alleges that the service of the PYLUSD Cross-Complaint was made in May 2024, and that, in fact, Del Cerro was served with PYLUSD’s Cross-Complaint on May 20, 2025, such that the written claim Del Cerro submitted in September 2025 was timely and in compliance with the Government Tort Claims act based on the May 20, 2025, date on which Del Cerro was served with PYLUSD’s Cross-Complaint. However, Plaintiff refers to extrinsic evidence, i.e., an email by counsel for PYLUSD, which cannot be considered on demurrer. Plaintiff’s opposition cites to a “Request for Judicial Notice” but none is filed. In addition, Del Cerro’s assertion appears to be contradicted by the record. The proof of service of summons that was filed on May 21, 2024, reflects that PYLUSD’s Cross-Complaint asserting claims for negligence, indemnity, contribution, and declaratory relief was served on “CIRILLO INVESTMENTS, LLC dba DEL CERRO MOBILE ESTATES, a California Limited Liability Corporation” on May 15, 2024. (See Nos. 6-7 to OCTA’s Request for Judicial Notice (“RJN”).) Del Cerro does not establish service was not effectuated on Del Cerro on May 15, 2024. The Court also notes
--	--	--

and takes judicial notice that the Court's records reflect that on July 22, 2024, Cirillo Investments, LLC, dba Del Cerro Mobile Estates, Eileen Cirillo, and Star Mobile Home Sales filed their Answer to PYLUSD's Cross-Complaint. (See ROA 93.) The court may take judicial notice on its own volition. (*Scott v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 743, 752.) This further suggests that Del Cerro was served on May 15, 2024. Therefore, Del Cerro had until November 15, 2024, to submit a claim against OCTA and comply with the Government Claims Act. Del Cerro's claims presented on January 7, 2025, and September 19, 2025 [or September 26, 2025 per No. 14 to OCTA's RJN], are untimely. As such, Del Cerro failed to meet a condition precedent to its ability to maintain an action against OCTA.

Based on the allegations of the FAXC and records for which the Court takes judicial notice, Plaintiff's written claims against OCTA were untimely. Plaintiff does not argue or show that it has alleged facts demonstrating an excuse for noncompliance with the Government Claims Act.

Further, and even assuming a claim was submitted within six months of service of PYLUSD's Cross-Complaint, Del Cerro did not present its claim until after it had already filed suit against OCTA. The record reflects that Del Cerro filed its original Cross-Complaint on July 22, 2024, and that an Amendment to the Cross-Complaint dated September 30, 2024, named ZOE 1 as OCTA. (Nos. 10 and 11 to OCTA's RJN.) The Court takes judicial notice that the Court's record reflects that this Amendment was filed on August 27, 2024. (See ROA 108.)

Yet, the FAXC alleges that Del Cerro submitted written claims on January 7, 2025, and September 19, 2025 [or September 26, 2025 per No. 14 to OCTA's RJN], well after September 30, 2024 [and August 17, 2024]. The judicially noticeable court records and the allegations in the FAXC therefore establish that Del Cerro did not submit a claim until after it had filed its cross-complaint against OCTA, such that Del Cerro did not comply with the Government Claims Act. " "Only

	after the public entity's board has acted upon or is deemed to have rejected the claim may the injured person bring a lawsuit alleging a cause of action in tort against the public entity." ' [Citations.]" (<i>Willis v. City of Carlsbad</i> (2020) 48 Cal.App.5th 1104, 1118; see <i>Lowry v. Port San Luis Harbor Dist.</i> (2020) 56 Cal.App.5th 211, 215, 221 [finding that Government Claims Act was not satisfied by filing a complaint before rejection of a claim, and that lawsuit against Port San Luis Harbor District was precluded because it was not preceded by rejection of a claim as well as that noncompliance with the Act could not be cured by amending the complaint to allege plaintiff complied].) Based on the foregoing, Del Cerro did not comply with the mandatory claims requirement under the Government Claims Act as a timely government claim was not presented after Del Cerro was served with PYLUSD's Cross-Complaint, and as Del Cerro did not present a government claim until after initiating suit against OCTA. As Del Cerro did not comply with the claims presentation requirement that is a condition precedent to filing a lawsuit against a public entity, Del Cerro's claims in the FAXC against OCTA are barred. In the face of the record, it does not appear that Plaintiff can add allegations that would rectify this defect. If a complaint does not state a cause of action, but there is a reasonable possibility that the defect can be cured by amendment, leave to amend must be granted. (<i>Blank v. Kirwan</i> (1985) 39 Cal. 3d 311, 318.) "The burden of showing that a reasonable possibility exists that amendment can cure the defects remains with the plaintiff; neither the trial court nor this court will rewrite a complaint. [Citations.]" (<i>Rakestraw v. California Physicians' Service</i> (2000) 81 Cal.App.4th 39, 44 [demurrer].) OCTA's demurrer to the entirety of Del Cerro's FAXC is SUSTAINED, without leave to amend. In light of the Court's ruling above, the Court need not, and declines to, address OCTA's additional arguments as to the deficiencies as
--	---

		to each of the five causes of action and uncertainty. <i>OCTA's Request for Judicial Notice in Reply</i> The Court considers the documents from OCTA's request for judicial notice as they are responsive to arguments made in the opposition. OCTA requests that the Court take judicial notice of the following documents: 1. Del Cerro Mobile Estates' State of California, Office of the Secretary of State, Certificate of Limited Partnership, dated June 24, 2025, executed by Eileen J. Cirillo. 2. Orange County Clerk-Recorder records reflect that Cirillo Investments, LLC registered the fictitious business name "Del Cerro Mobile Estates" on September 28, 2020 and is still active. 3. State of California, Office of the Secretary of State, Statement of Information for Cirillo Investments, LLC. 4. Plaintiff's Complaint dated October 5, 2023. (ROA No. 2) 5. Plaintiff's Amendment to Complaint (DOE 1) dated May 8, 2024. (ROA No. 65). 6. PYLUSD's Cross-Complaint dated May 13, 2024 (ROA No. 70). 7. PYLUSD's Proof of Service of Summons on Del Cerro Mobile Estates dated May 21, 2024 (ROA No. 76). 8. Plaintiff's Proof of Service of Summons on Del Cerro Mobile Estates dated June 5, 2024. (ROA No. 86). 9. Del Cerro Mobile Estates' Answer to Plaintiff's Complaint dated July 22, 2024 (ROA No. 90). 10. Del Cerro Mobile Estate's Cross-Complaint dated July 22, 2024. (ROA. No. 92.) 11. Del Cerro Mobile Estate's Amendment to Cross-Complaint dated August 27, 2024. (ROA No. 108.) 12. Del Cerro Mobile Estates' Claim for Damages dated January 7, 2025. 13. Del Cerro's First Amended Cross-Complaint dated September 19, 2025 (ROA No. 205). 14. Del Cerro Mobile Estates' Claim for Damages dated September 26, 2025. The Court DENIES the request for judicial notice as to Nos. 1 through 3 as these
--	--	--

		materials are not relevant to the determination of the issues. The Court GRANTS the request for judicial notice as to Nos. 4 through 11, and 13 pursuant to Evidence Code section 452(d) as court records but declines to take judicial notice of the truth of hearsay statements therein. The Court GRANTS the request for judicial notice as to Nos. 12, and 14. "The court may take judicial notice of the filing and contents of a government claim, but not the truth of the claim. [Citations.]" (<i>Gong v. City of Rosemead</i> (2014) 226 Cal.App.4th 363, 368, fn. 1.) "If a plaintiff alleges compliance with the claims presentation requirement, but the public records do not reflect compliance, the governmental entity can request the court to take judicial notice under Evidence Code section 452, subdivision (c) that the entity's records do not show compliance. [Citations.]" (<i>Id.</i> at p. 376.) The Case Management Conference is taken off-calendar. OCTA is ordered to prepare a judgment of dismissal. <i>OCTA to give notice.</i>
107	Panico vs. Laing, 24-01404358	<u>Motion to Compel Deposition</u> Defendants Oscar Laing and Robert Laing ("Defendants") move to compel Plaintiff Cory Panico ("Plaintiff") to appear for deposition. Over a period of seven months, Defendants served Plaintiff with three separate notices of deposition. (Mosier Decl. ¶¶3-9.) The most recent deposition notice was served on September 12, 2025 with a deposition date of October 16, 2025. (Mosier Decl. ¶ 7.) Plaintiff did not appear for deposition on October 16, 2025, and the defense took a certificate of non-appearance. (Mosier Decl. ¶ 7, Exh. A.) Plaintiff has not filed an opposition to this motion. The motion is GRANTED. Plaintiff is ordered to appear for deposition within twenty days of service of this notice of ruling.

		Because Plaintiff failed to show substantial justification for failing to appear at any of the noticed depositions, sanctions are GRANTED in the amount of \$618.00 against Plaintiff. (Code Civ. Proc., § 2025.450(g)(1).) Sanctions are to be paid to Defendant's counsel within 30 days of service of notice. <i>Defendants to give notice</i> <u>Motion to be Relieved</u> Hesam Yazdanpanah of the Law Offices of Hess Panah Associates, ("Moving Attorney") moves to be relieved as counsel of record for Plaintiff Cory Panico. The motion is unopposed. Moving Attorney has stated a basis for permissive withdrawal under Rules of Professional Conduct, Rule 1.16. The motion satisfies the notice, declaration, and proposed order requirements of Cal. Rules of Court, Rule 3.1362. Plaintiff's attorney to give notice and include the continued trial date of 9/14/2026 at 9 a.m. in Department W15. The order is deemed effective upon service by the moving attorney on the client and a proof of service filed with this court. The motion is GRANTED. <i>Moving Attorney to give notice.</i>
108	Westcoast Therapy, Inc. vs. Xavier, 22-01256587	<u>Motion to Compel Written Discovery and Deem Matters Admitted (ROAs 178 and 192)</u> Plaintiff Westcoast Therapy, Inc. ("Plaintiff") moves for an order: (1) compelling Defendant Angelica Xavier ("Defendant") to serve responses to Plaintiff's first set of Requests for Production of Documents, Special Interrogatories, and Form Interrogatories; (2) deeming the truth of all matters specified in Plaintiff's first set of Requests for Admission as admitted; and (3) imposing monetary sanctions. The discovery at issue was served on January 19, 2026 electronically and by mail. (Declarations of Shanon J. Slack ¶¶ 2-3.) Since Defendant is in pro per and does not

	appear to have consented to electronic service, responses were due on February 23, 2026. As of February 23, 2026, no responses had been received. (Slack Decls. ¶ 5.) Based on the above, the unopposed Motions are GRANTED. (Code Civ. Proc., §§ 2030.290(b), 2031.300(b), 2033.280(b).) Defendant is ORDERED to serve verified responses to the first set of Requests for Production of Documents, Special Interrogatories, and Form Interrogatories within 20 days following July 2, 2026. The genuineness of documents and truth of the matters set forth in the Requests for Admissions, Set One are deemed admitted. Plaintiff's request for monetary sanctions is GRANTED in the reduced amount of \$620.00. (Code Civ. Proc., §§ 2030.290(c), 2031.300(c), 2033.280(c).) Sanctions are to be paid to Plaintiff's counsel within 20 days following July 2, 2026. <u>Motion to Compel Deposition (ROA 271)</u> Plaintiff Westcoast Therapy, Inc. ("Plaintiff") moves to compel Defendant Angelica Xavier ("Defendant") to appear for deposition. Plaintiff's notice of deposition of Defendant was served on February 18, 2026. (Slack Decl., ¶ 7.) Defendant does not deny receiving the deposition notice and does not deny that she did not serve any objections to the notice. (See, generally, Oppn.) Defendant contends that she is not refusing to be deposed, but is requesting that the deposition occur after the July 2, 2026 hearing on her motion to compel arbitration. (Xavier Decl. ¶ 6.) Defendant also contends she is recovering from a traumatic brain injury, which is causing her cognitive limitations. (Xavier Decl. ¶ 4.) Plaintiff contends that Defendant did not appear at her deposition, and, as a result, Plaintiff incurred \$1,428.50 in Court Reporter fees. (Slack Decl., ¶¶ 9, 11.) Plaintiff requests sanctions in the amount of \$5,636.00 plus \$60 in filing fees for bringing this motion.
--	---

		The motion is GRANTED. Defendant is ordered to appear for her deposition within 20 days following the July 2, 2026 hearing on her motion to compel arbitration. Because Defendant failed to show substantial justification for failing to object or appear at her deposition, therefore causing Plaintiff to incur the costs of a Court Reporter, sanctions are GRANTED in the reduce amount of \$1,428.50 against Defendant. (Code Civ. Proc., § 2025.450(g)(1).) Sanctions are to be paid to Plaintiff's counsel within 20 days following July 2, 2026. Depending on the outcome of the arbitration motions, the Court may vacate the above rulings. <i>Plaintiff to give notice of all rulings.</i>
109	Nguyen vs. Roth Staffing Companies, L.P., 20-01143300	Defendants FISTER TAX SERVICE, INC. and GERALD L. FISTER ("Fister Defendants") will move the Court for Summary Judgment or, in the Alternative, Summary Adjudication (11 issues) in favor of Fister Defendants and against Plaintiff Alana Nguyen. On 5/26/2020 Plaintiff Nguyen filed a Complaint against Defendants for: 1. Violation of California Fair Employment and Housing Act – Gender Discrimination, Sexual Harassment and/or Retaliation, and Failure to Take Steps Necessary to Prevent Harassment, and (Cal. Gov. Code § 12940); 2. Wrongful Constructive Termination in Violation of Public Policy; 3. Wrongful Constructive Termination/Retaliation in Violation of California Labor Code Section 1102.5; 4. Negligent Hiring, Supervision, Retention; 5. Intentional Infliction of Emotional Distress; 6. Sexual Battery; 7. Violation of the Ralph Act (Violence or Intimidation by Threat of Violence) (Cal. Civ. Code §§ 51.7, 52, and 52.1); 8. Failure to Pay All Wages Due Upon Separation (Cal. Labor Code § 201, 202, 203). 9. Waiting Time Penalties In her Complaint, Plaintiff alleges that she was hired by Defendants to work as an administrative assistant at Fister Tax Services on or around December 2018. (Complaint

		¶10.) Plaintiff pleads that as a result of Defendants' creation of a hostile and discriminatory environment she had no choice but to quit on or about March 18, 2019. (Id ¶23.) <i>ISSUE NO. 1:</i> Plaintiff's First Cause of Action (Violation of FEHA based on Gender Discrimination, Sexual Harassment and/or Retaliation, and Failure to Take Steps Necessary to Prevent Harassment) fails as a matter of law and there is no triable issue of material fact when Defendant Fister Tax Service, Inc. was not an "employer" as defined at Government Code § 12926(d). As a threshold matter, Defendants argue that pursuant to Government Code §12926(d) "Employer" includes any person regularly employing five or more persons, or any person acting as an agent of an employer, directly or indirectly....", and Defendant did not employ five or more persons during the relevant period. In the Separate Statement, Fact No. 41 states, "In 2018 and 2019, at any given time, Roth only placed one of their temporary employees at FTS. There were possibly two or three occasions that Nguyen trained Castenos at FTS so that she could fill in when Nguyen couldn't come into work at FTS. But, other than those occasions, Castenos and Nguyen did not work together. Nguyen was Roth's only temporary employee at FTS between December 22, 2018, through March 21, 2019." In response, Plaintiff argues under the definition of "regularly employing", of Cal. Code Regs., tit. 2, § 11008, Defendant FTS is subject to FEHA. Cal. Code Regs., tit. 2, § 11008 provides: "(e) "Employer." Any person or individual engaged in any business or enterprise regularly employing five or more individuals, including individuals performing any service under any appointment, contract of hire or apprenticeship, express or implied, oral or written. "(1) "Regularly employing" means employing five or more individuals for any part of the day on which the unlawful conduct allegedly
--	--	--

		occurred, or employing five or more employees on a regular basis.” However, Plaintiff’s evidence is not persuasive. First, Plaintiff argues that between 2017 and until the end of Plaintiff’s employment with FTS, Roth placed six ambassadors with FTS. [Boxer Decl. ¶ 7; Ex. 6, Siebert Dep. 140:17-20.] However, placement in 2017 is irrelevant. This deposition testimony does not definitively state how many “ambassadors” Roth placed with FTS between 12/22/2018 and 3/21/2019 (the 3 month period of Plaintiff’s employment.) Second, in Plaintiff’s Separate Statement Nos. 7, 8, 9, she seems to provide evidence that Defendants had 5 employees including Fister during the relevant period: 1) Scott Hasson (IT) (Boxer Decl. ¶4, Ex. 3, Fister PMK Dep. 22:20-21:1), 2) Akela Shin (tax assistant) (Boxer Decl. ¶4, Ex. 3 Fister PMK Dep. 23:25-24:6), 3) Plaintiff 4) Madeleine Castenos (Boxer Decl., Ex. 4 Nguyen Dep. 31:21-32:2, Ex. 5 Fister Depo. 92:13-18)), 5) Fister. Notably, however, as to Ms. Shin, Fister testified: “A. Yeah. But she left for a little while because she was going back to college, and she's also a Polynesian dancer. So she has other interests, and so she actually left for a couple years. She wasn't here when Alana was here -- or excuse me, Ms. Nguyen. “Q. So is it your best recollection, then, Ms. Shin was not working at Fister Tax in the year 2019 or 2018 when Ms. Nguyen was working at Fister Tax? “A. Right, yes.” [Ex. 5, Pg. 24:19-24.] In reply, Defendant also provides deposition testimony from Mr. Fister that Scott Hasson (the IT person) was a contractor. (Evidence in Support of Reply Ex. A, page 21:22-23) Therefore, because Defendant FTS was not regularly employing five or more persons
--	--	---

		during the relevant period, summary adjudication should be granted as to claims based on Gender Discrimination, Retaliation, and the Failure to Take All Steps Necessary to Prevent Harassment and Retaliation. However, the analysis does not end there as to Sexual Harassment. Defendants concede, relative to the Sexual Harassment claim of the First Cause of Action, it is subject to a "one employee" rule as codified at Government Code Section 12940(j)(4)(A). Defendant FTS clearly employs more than one person. As to Sexual Harassment, Defendants argue there is nothing in this case brought by Nguyen that establishes an objectively hostile or abusive work environment. However, pursuant to Gov. Code §12923(e), "Harassment cases are rarely appropriate for disposition on summary judgment. In that regard, the Legislature affirms the decision in <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243 and its observation that hostile working environment cases involve issues 'not determinable on paper.'" Indeed, Defendants' Fact No. 103, relating to whether the environment was severe or pervasive, is disputed by Plaintiff. In disputing this fact, Plaintiff states: "Fister's harassment began immediately after Plaintiff started her employment with FTS and occurred on an almost daily basis until her employment with FTS ended. Fister's comments to Plaintiff included, but are not limited to, "you look amazing today," "you look beautiful," and "you look great," all of which made Plaintiff feel uncomfortable. Fister often complimented Plaintiff's attire and her physical appearance—in fact, Fister admitted to saying "I want you to know that you look beautiful today," and "you have the right voice for a receptionist it's soothing and even sexy" to Plaintiff. Fister admitted to calling Plaintiff "beautiful" knowing that he "probably shouldn't have said that." Fister further admitted to sending inappropriate text messages to Plaintiff, which he deleted. For example, Fister sent Plaintiff the text message: "You bring sunshine to the office
--	--	--

with your lovely smile and soothing voice.” On another occasion, Fister sent Plaintiff the text message “I can always give you a back rub any time if you need it.” Fister admitted to offering a back rub to Plaintiff at least twice, including in person. Plaintiff refused Fister’s offer for a back rub. Fister even complained to Plaintiff about his desire to have sex with his wife, and that his wife was too tired to satisfy his sexual desires. Fister often referred to Plaintiff as “my dear.” Fister often found excuses to put his hands on Plaintiff, such as by moving her hair away from her face, or putting his hand on her shoulder. Fister first began touching Plaintiff without her consent when he began training her. Fister touched Plaintiff’s face and her body under the pretext of “removing lint” from her top. Plaintiff never gave Fister permission to touch her.”

(Boxer Decl. ¶¶ 5, 6; Ex. 4, Nguyen Dep. 40:9-23, 44:18-45:1, 48:6-22, 59:14-62:14, 77:3-11, Ex. 5, Fister Dep. 59:21-23, 65:15-24, 67:9-68:8, 73:11-75:19, 82:12-84:4, 133:3-135:25, 137:25-138:15, 140:2-11, 144:7-147:17.)

As such, the jury should determine this issue. SAI as to the sexual harassment claim of the 1st cause of action is DENIED.

ISSUE NO. 2:

Plaintiff’s First Cause of Action (Violation of FEHA based on Gender Discrimination, Sexual Harassment and/or Retaliation, and Failure to Take Steps Necessary to Prevent Harassment) fails as a matter of law and there is no triable issue of material fact when Defendant Gerald L. Fister as a supervisory employee cannot be held liable for Gender Discrimination, Retaliation or Failure to Take Steps Necessary to Prevent Harassment pursuant to the holdings of *Reno v. Baird* (1998) 18 Cal.4th 640 [finding that supervisory employees cannot be held liable for employment discrimination] and *Jones v. Torrey Pines Partnership* (2008) 42 Cal.4th 1158 [finding that supervisory employees cannot be held liable under FEHA for their retaliatory acts.].

		This Issue is a non-issue. The 1st cause of action of the Complaint itself indicates that, "Plaintiff alleges only harassment against FISTER but all claims against all other Defendants." <i>ISSUE NO. 3:</i> Plaintiff's Second Cause of Action (Wrongful Constructive Termination in Violation of Public Policy) fails as a matter of law and there is no triable issue of material fact when neither Defendant Fister Tax Service, Inc. nor Gerald L. Fister was the "employer" of Plaintiff Nguyen, or when workplace conditions at Fister Tax Service, Inc. were not objectively intolerable and when reasonable alternatives existed not to work there. As to the 2nd cause of action for Wrongful Constructive Discharge in Violation of Public Policy, this cause of action is based on FEHA (Complaint¶35.) As such, it appears barred for the same reasons set forth above. Summary Adjudication is GRANTED as to the 2nd cause of action. <i>ISSUE NO. 4:</i> Plaintiff's Third Cause of Action (Wrongful Constructive Termination in Retaliation in Violation of California Labor Code Section 1102.5) fails as a matter of law and there is no triable issue of material fact when neither Defendant Fister Tax Service, Inc. nor Gerald L. Fister fall within the definition of "client employer" as codified at Labor Code Section 2810.3(a)(1)(B). Thus, coverage under Section 1102.5 does not apply to the Fister Defendants under Labor Code Section 1102.5(i). This cause of action is based on FEHA (Complaint¶40) and Ca Lab Code§ 1102.5. Lab. Code, § 1102.5 "(a) An employer, or any person acting on behalf of the employer, shall not make, adopt, or enforce any rule, regulation, or policy preventing an employee from disclosing information to a government or law enforcement agency, to a person with
--	--	--

		authority over the employee, or to another employee ... "(b) An employer, or any person acting on behalf of the employer, shall not retaliate against an employee for disclosing information, or because the employer believes that the employee disclosed or may disclose information... "(i) For purposes of this section, "employer" or "a person acting on behalf of the employer" includes, but is not limited to, a client employer as defined in paragraph (1) of subdivision (a) of Section 2810.3 and an employer listed in subdivision (b) of Section 6400." Defendants argue FTS was not Plaintiff's "employer" or "any person acting on behalf of the employer." As to being Plaintiff's employer, Defendants fail to set forth any law pertaining to being an "employer", or what it means to "employ." Defendants set forth many facts as to why FTS was not Plaintiff's employer. For example, Roth maintained an employee file on Nguyen, which contained her application for employment, I-9 form, references, testing, W-4 and W-2 Forms, emergency contact information, acknowledgement of employee handbook, job description, and paystubs. (SUMF Nos. 3, 16, 108, 109.) Plaintiff points to <i>Martinez v. Combs</i> (2010) 49 Cal.4th 35, 64 (unpaid minimum wages case) for the definition of employ: "(a) to exercise control over the wages, hours or working conditions, or (b) to suffer or permit to work, or (c) to engage, thereby creating a common law employment relationship." To that end, Plaintiff creates a triable issue of material fact as to whether FTS was her employer with evidence that Fister exercised control over Plaintiff and her day to-day work activities (SMF 14), Fister trained supervised Plaintiff (SMF 11, 16), etc. Notably, Defendants also seem to also argue that while they could be considered a "client employer" for the purpose of the statute, because FTS had less than 25 workers and were not being supplied by five workers at
--	--	--

	any given time, no employment status can be formed for the purpose of Lab. Code §1102.5. However, because Defendant failed to sustain its burden to show it was not Plaintiff's employer, and because there are triable issues of material fact as to that issue—the Court does not need to reach the issue of whether Defendant is a "client employer". Furthermore, arguably Lab. Code § 1102.5(i) merely extends liability to include client employers. That is, there is no language in the statute that otherwise imposes any restrictions on the definition of "employer" for purposes of liability. Crucially, however, it does not appear that any retaliation occurred here. Plaintiff pleads in the Statement of Facts portion of the Complaint: "24. Following PLAINTIFF'S termination of employment, Ultimate Staffing contacted PLAINTIFF. PLAINTIFF communicated the sexual harassment she had experienced with FISTER to Ultimate Staffing. PLAINTIFF was told that Ultimate Staffing would attempt to find her another job." Additionally, in the 3rd cause of action she pleads: "44. As described above, DEFENDANTS retaliated against PLAINTIFF after she complained to Birdy. Specifically, DEFENDANTS constructively terminated PLAINTIFF after refusing to take steps to rectify the harassing, discriminatory and dangerous working conditions." Defendant argues that Nguyen had already left her placement at FTS and had requested other assignments after her return from vacation. (Dep. Nguyen, 63:9-15, 67:3 4). That is, Defendants argue there was no retaliation for complaining about Fister's conduct because Plaintiff complained only after she left the position at FTS. In opposition, Plaintiff argues she engaged in a protected activity by opposing Fister's
--	---

sexual harassment, as Plaintiff brought up her boyfriend and Fister's wife to do so. (SMF 57, 58). Hence, she is suggesting that there was some form of complaint made before she left FTS' employment. However, here, there is no evidence of a complaint, let alone retaliation for making a complaint.

Rather, she appears to have complained to "Bertie" only after she left FTS.

As such, the Motion is GRANTED as to Third Cause of Action for Wrongful Constructive Termination in Retaliation in Violation of California Labor Code Section 1102.5. (Issue 4.)

ISSUE NO. 5:

Plaintiff's Fourth Cause of Action (Negligent Hiring, Supervision and/or Retention) fails as a matter of law and there is no triable issue of material fact when neither Defendant Fister Tax Service, Inc. nor Gerald L. Fister was the "employer" of Plaintiff Nguyen. She was a contract employee of Co-Defendants Roth Staffing Companies dba Ultimate Staffing Services. There is a complete absence of evidence to show negligent hiring, supervision and/or retention on part of the Fister Defendants.

As established above, there are triable issues of material fact as to whether FTS was Plaintiff's employer.

Defendants also argue that FTS had no knowledge or awareness of Fister's propensity to engage in sexual harassment. Defendants argue there is no prior history of sexual misconduct. (SUMF No. 74).

Plaintiff argues that FTS received a complaint in January 2019 that Fister's comments on a female applicant's physical appearance made her feel "uncomfortable." (SMF 25, Boxer Decl. ¶ 7; Ex. 6, Siebert Dep. 180:16 190:5.)

It appears that, in response to the complaint, FTS took no action, and permitted Fister to continue supervising female employees at FTS. (SMF 28 30).

		As such, there are triable issues of material fact as to whether FTS knew of Fister's propensity to make employees feel uncomfortable. Defendants also argue that negligent supervision is barred by workers' compensation exclusivity. In support of this argument, Defendants cite to several cases, none of which are on point: • <i>Jones v. Dept. of Corrections and Rehabilitation</i> (2007) 152 Cal. App. 4th 1367, 1384 (claims of emotional distress and assault and battery were barred by workers' compensation exclusivity rule.) • <i>Coit Drapery Cleaners, Inc. v. Sequoia Inc. Co.</i> (1993) 14 Cal. App. 4th 1595, 1605-1606 (Insurance Code § 533 precludes coverage of former employee's allegations of wrongful termination and sexual harassment). • <i>Riley v. Southwest Marine, Inc.</i> (1988) 203 Cal. App.3d 1242, 1247, fn. 3, 1259. (Dealt with the issue of a special employment relationship.) None of these cases appear exactly on point; and thus, Defendants fail to establish that, as a matter of law, workers compensation exclusivity rule bars this cause of action. As such, the motion is DENIED as to the 4th cause of action for Negligent Hiring, Supervision and/or Retention. (Issue 5) ISSUE NO. 6: Plaintiff's Fifth Cause of Action (Intentional Infliction of Emotional Distress) fails as a matter of law and there is no triable issue of material fact when neither Defendant Fister Tax Service, Inc. nor Gerald L. Fister engaged in any "outrageous conduct" that would be so extreme as to exceed all bounds tolerated in civilized society or when there is no evidence that Plaintiff suffered "severe emotional distress." Defendant argues, "Without adequate proof of outrageous conduct by Fister or FTS and no showing by Nguyen that her emotional distress was severe, the IIED claim fails as a matter of law." (Motion page 17:13-14). However, there are triable issues of material
--	--	--

		fact as to whether Fister's conduct was sufficiently outrageous in the alleged sexual harassment of Plaintiff. Whether Plaintiff sufficiently suffered emotional distress from the conduct should be presented to the jury. [See Plaintiff's SMF No. 62.] The motion as to ISSUE 6 is DENIED. <i>ISSUE NO. 7:</i> Plaintiff's Sixth Cause of Action (Sexual Battery) fails as a matter of law and there is no triable issue of material fact when neither Defendant Fister Tax Service, Inc. nor Gerald L. Fister engaged in a "harmful or offensive contact" and/or the Plaintiff did not suffer a "sexually offensive contact." Civil Code Section 1708.5(a) defines sexual battery as a harmful or offensive contact with an intimate part of another. Intimate Part has been defined at Section 1708.5(d)(1) to mean, "the sexual organ, anus, groin, buttocks of any person, or the breast of a female." In support of their arguments, both sides cite to Ca Civ Code §1708.5. Civ. Code, § 1708.5 "(a) A person commits a sexual battery who does any of the following: "(1) Acts with the intent to cause a harmful or offensive contact with an intimate part of another, and a sexually offensive contact with that person directly or indirectly results. "(2) Acts with the intent to cause a harmful or offensive contact with another by use of the person's intimate part, and a sexually offensive contact with that person directly or indirectly results. "(3) Acts to cause an imminent apprehension of the conduct described in paragraph (1) or (2), and a sexually offensive contact with that person directly or indirectly results. "(d) For the purposes of this section: "(1) "Intimate part" means the sexual organ, anus, groin, or buttocks of any person, or the breast of a female." Here, there is no evidence that Fister touched an intimate part of Plaintiff's body. Rather, it appears he touched her face, hair, and shoulder, and removed a piece of lint off her shirt (but not her breast). However, Plaintiff
--	--	--

		points to no evidence that he touched any intimate part of her body. [See Plaintiff's SMF No. 52.] The motion is therefore GRANTED as to the 6th cause of action for Sexual Battery (Issue No. 7.) <i>ISSUE NO. 8:</i> Plaintiff's Seventh Cause of Action (Violation of the Ralph Act – Violence or Intimidation by Threat of Violence – Cal. Civ. Code §§ 51.7, 52 and 52.1) fails as a matter of law and there is no triable issue of material fact when neither Defendant Fister Tax Service, Inc. nor Gerald L. Fister engaged in any violence or intimidation by threat of violence to Plaintiff. In the 7th cause of action, Plaintiff pleads: "67. As alleged above, FISTER intentionally and recklessly committed an act of violence or a threatened act of violence upon PLAINTIFF'S person touching her face and boobs without her consent" [Complaint¶67.] Our Court of Appeal explained in <i>Gabrielle A. v. County of Orange</i> (2017) 10 Cal.App.5th 1268, 1289–1291: "The Bane Act prohibits interfering "by threat, intimidation, or coercion, or attempts to interfere by threat, intimidation, or coercion, with the exercise or enjoyment by any individual or individuals of rights secured by the Constitution or laws of the United States, or of the rights secured by the Constitution or laws of this state." (§ 52.1, subd. (a).) "Speech alone is not sufficient to support an action ..., except upon a showing that the speech itself threatens violence against a specific person or group of persons; and the person or group of persons against whom the threat is directed reasonably fears that, because of the speech, violence will be committed against them or their property and that the person threatening violence had the apparent ability to carry out the threat." (§ 52.1, subd. (j).)
--	--	---

		"The Ralph Act is an antidiscrimination scheme. Section 52, subdivision (a), states: "Whoever denies, aids or incites a denial, or makes any discrimination or distinction contrary to Section 51, 51.5, or 51.6, is liable for each and every offense for the actual damages...." Section 51, subdivision (b), is the Unruh Civil Rights Act, California's basic anti-discrimination statute, forbidding bias based on "sex, race, color, religion, ancestry, national origin, disability, medical condition, genetic information, marital status, sexual orientation, citizenship, primary language, or immigration status." Sections 51.5 and 51.6 prohibit, respectively, boycotts or blacklists based on protected characteristics as described in the Unruh Civil Rights Act and gender-based pricing, respectively. Section 51.7, subdivision (a), states that everyone in California has "the right to be free from any violence, or intimidation by threat of violence, committed against their persons or property because of political affiliation, or on account of any characteristic listed or defined in **294 subdivision (b) or (e) of Section 51, or position in a labor dispute, or because another person perceives them to have one or more of those characteristics. The identification in this subdivision of particular bases of discrimination is illustrative rather than restrictive." "There is no evidence that either statute has any relevance to this matter. "The Bane Act and related statutes 'are California's response to [the] alarming increase in hate crimes.' ..."[T]o state a cause of action under section 52.1 there must first be violence or intimidation by threat of violence. Second, the violence or threatened violence must be due to plaintiff's membership in one of the specified classifications set forth in Civil Code section 51.7 or a group similarly protected by constitution or statute from hate crimes." (<i>Cabesuela v. Browning-Ferris Industries of California, Inc.</i> (1998) 68 Cal.App.4th 101, 111, 80 Cal.Rptr.2d 60.) Plaintiffs do not even allege violence, and therefore the Bane Act claim must fail. "Under the Ralph Act, a plaintiff must establish the defendant threatened or committed violent acts against the plaintiff or
--	--	---

their property, and a motivating reason for doing so was a prohibited discriminatory motive, or that the defendant aided, incited, or conspired in the denial of a protected right. (See CACI No. 3063; *Austin B. v. Escondido Union School Dist.* (2007) 149 Cal.App.4th 860, 880-881, 57 Cal.Rptr.3d 454.) Again, plaintiffs allege no violent act, arguing defendants "conspired" against them due to their "medical conditions." Once again, they offer no evidence to establish defendants discriminated against them, but claim "quite possibly" this animus should be inferred. We decline to substitute speculation for evidence, and find no triable issue of material fact as to this cause of action."

[*Gabrielle A. v. County of Orange* (2017) 10 Cal.App.5th 1268, 1289–1291.]

Here, even in viewing the evidence and inferences "in the light most favorable to the opposing party" (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843), this Court is hard pressed to find that removing a piece of lint, touching Plaintiff's hair, and hovering over her (Plaintiff's Opp page 19:8-17) constitutes violence or threat of violence for which these Acts were designed to prevent. Again, while Fister's conduct was potentially harassing, it does not appear to be violent or threatening of violence to support this cause of action.

Therefore, the motion as to the 7th cause of action (Issue No. 8) is GRANTED.

ISSUE NO. 9:

Plaintiff's Eighth Cause of Action (Failure to Pay All Wages Due Upon Separation – Cal. Labor Code §§ 201, 202, 203) fails as a matter of law and there is no triable issue of material fact that Defendant Fister Tax Service, Inc. failed to pay all wages due to Plaintiff Nguyen when the responsibility to pay wages was upon her employer Roth Staffing Companies dba Ultimate Staffing Services and Plaintiff is uncertain she has not been paid all her wages.

ISSUE NO. 10:

Plaintiff's Ninth Cause of Action (Waiting Time Penalties) fails as a matter of law and there is

		no triable issue of material fact since there is no listed Ninth Cause of Action of the Complaint and there is no evidence that Defendant Fister Tax Service, Inc. failed to pay all wages due to Plaintiff Nguyen when the responsibility to pay wages was upon her employer Roth Staffing Companies dba Ultimate Staffing Services and Plaintiff is uncertain she has not been paid all her wages. At Footnote 1 on page 2 of Plaintiff's Opposition she states, "Plaintiff does not challenge issues related to Plaintiff's Causes of Action Nos. 8 and 9 (issues 9 and 10, respectively, in Defendants' Motion for Summary Judgment), alleged in the operative complaint, regarding Plaintiff's wage and hour issues only." Based on this concession, the motions as to Issues 9 and 10, relating to the 8th and 9th causes of action are GRANTED. <i>ISSUE NO. 11:</i> Plaintiff is not entitled to punitive damages against Defendants Fister Tax Service, Inc. or Gerald L. Fister because she cannot show, by clear and convincing evidence, that Fister Defendants engaged in oppressive, fraudulent, or malicious conduct, or each ratified the same. Whether Defendants conduct was sufficiently oppressive, fraudulent, or malicious based on the facts and evidence raised herein should be determined by the jury. The motion as to Issue 11 (relating to punitive damages) is DENIED. Objections are improperly formatted and will not be ruled on. [CRC 3.1354(c).] The Case Management Conference will proceed as scheduled. <i>Defendants to give notice.</i>
--	--	--

110	Brixmor Plaza By The Sea LLC vs. San Clemente Natural Solutions, LLC, 25-01486485	The unopposed motion of attorney Cristina Saca of Absolute Law Group, PC to be relieved as counsel for Defendant Shawn McManigal is GRANTED. Service on the client and on all other parties who have appeared in the case was proper and all required forms containing the requisite information were filed pursuant to California Rules of Court, rule 3.1362. The order will take effect once moving attorney files proof of service of the signed order (MC-053) on the client. The Case Management Conference is continued to August 20, 2026 at 1:30 p.m. <i>Moving attorney to give notice.</i>
111	Shoghibenam vs. Kia America, Inc., 25-01509034	Defendant Kia America, Inc. ("Defendant") filed a motion to strike and demurrer. In the motion to strike, Defendant moves to strike Plaintiffs' fifth cause of action for fraudulent inducement – concealment and Plaintiffs' claim for punitive damages. Defendant also demurs to the fifth cause of action for fraudulent inducement – concealment. The demurrer does not address any other cause of action alleged. Plaintiffs Lida Shoghibenam and Ali Khazand ("Plaintiffs") oppose both the motion to strike and the demurrer. I FIFTH CAUSE OF ACTION FOR FRAUDULENT INDUCEMENT – CONCEALMENT Both the demurrer and the motion to strike attack Plaintiffs' fifth cause of action for fraudulent inducement – concealment. In <i>Dhital v. Nissan North America, Inc.</i> (2022) 84 Cal.App.5th 828, 844, the Court of Appeal found that a plaintiff sufficiently stated a cause of action for fraudulent inducement – concealment at the pleading stage. The Court found: "Plaintiffs alleged the above elements of fraud in the SAC. As we have discussed, plaintiffs alleged the CVT transmissions installed in numerous Nissan vehicles (including the one plaintiffs purchased) were defective; Nissan

		knew of the defects and the hazards they posed; Nissan had exclusive knowledge of the defects but intentionally concealed and failed to disclose that information; Nissan intended to deceive plaintiffs by concealing known transmission problems; plaintiffs would not have purchased the car if they had known of the defects; and plaintiffs suffered damages in the form of money paid to purchase the car. "In its short argument on this point in its appellate brief, Nissan argues plaintiffs did not adequately plead the existence of a buyer-seller relationship between the parties, because plaintiffs bought the car from a Nissan dealership (not from Nissan itself). At the pleading stage (and in the absence of a more developed argument by Nissan on this point), we conclude plaintiffs' allegations are sufficient. Plaintiffs alleged that they bought the car from a Nissan dealership, that Nissan backed the car with an express warranty, and that Nissan's authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers. In light of these allegations, we decline to hold plaintiffs' claim is barred on the ground there was no relationship requiring Nissan to disclose known defects. "Nissan also contends plaintiffs did not provide specifics about what Nissan should have disclosed. But plaintiffs alleged the CVT transmissions were defective in that they caused such problems as hesitation, shaking, jerking, and failure to function. The SAC also alleged Nissan was aware of the defects as a result of premarket testing and consumer complaints that were made both to the National Highway Traffic Safety Administration and to Nissan and its dealers. It is not clear what additional information Nissan believes should have been included. We decline to hold (again in the absence of a more developed argument on this point) that plaintiffs were required to include in the SAC more detailed allegations about the alleged defects in the CVT transmissions. We conclude plaintiffs' fraud claim was adequately pleaded." <i>(Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828, 844.)</i>
--	--	--

Importantly, the California Supreme Court's three-step analysis from *Rattagan* controls fraudulent concealment within contractual relationships, whereas *Dhital* controls fraudulent concealment inducing the formation of a contractual relationship.

Fraud causes of action must be pled with specificity. "...This particularity requirement necessitates pleading facts which 'show how, when, where, to whom and by what means the representations were tendered.'" (*Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 73.)

With respect to fraudulent concealment claims, however, a plaintiff is not required to allege with the usual detail required in connection with fraud claims based on affirmative representations. In *Vega v. Jones, Day, Reavis & Pogue* (2004) 121 Cal.App.4th 282, the Court of Appeal found that the trial court had improperly sustained a demurrer to a concealment cause of action on the ground the cause of action on the ground plaintiff had failed to allege the cause of action "with the requisite degree of specificity." (*Id.*, 296.) The court held that "[t]he pertinent question in a concealment case is not who said what to whom." (*Ibid.*) Rather the question is whether the defendant intentionally concealed something from plaintiff "so that they would proceed with the transaction." (*Ibid.*)

Additionally, "[e]ven under the strict rules of common law pleading, one of the canons was that less particularity is required when the facts lie more in the knowledge of the opposite party." (See *Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 217, superseded by statute on other grounds in *Branick v. Downey Savings & Loan Assn.* (2006) 39 Cal.4th 235.) Less specificity is required for fraud claims when it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy. (*Alfaro v. Community Housing Improvement System & Planning Assn., Inc.* (2009) 171 Cal.App.4th 1356.)

Here, the Court finds that Plaintiffs have not alleged that Defendant had a duty to disclose the alleged concealed material facts. There are simply no allegations that state that Defendant had a duty to disclose to certain material facts to Plaintiffs that were concealed from Plaintiffs. In the Complaint, the word duty is only used to state that Defendant had a duty to repurchase the vehicle. (See Complaint, ¶ 14.) As discussed above, the duty to disclose is one of the five elements of a fraudulent concealment cause of action.

The Demurrer to the fifth cause of action is SUSTAINED WITH LEAVE TO AMEND. The Motion to Strike the fifth cause of action is GRANTED WITH LEAVE TO AMEND.

II. PUNITIVE DAMAGES

Next, Defendant moves to strike Plaintiffs' claim for punitive damages on the grounds that "Plaintiffs' Fraud allegations do not rise to the level of culpability required by Civil Code section 3294 and Plaintiffs have not pled facts showing that any officer, director, or managing agent of the corporation committed or authorized such acts."

Plaintiffs oppose this argument.

Pursuant to the Song-Beverly Act, "[i]f the buyer establishes that the failure to comply was willful, the judgment may include, in addition to the amounts recovered under subdivision (a), a civil penalty which shall not exceed two times the amount of actual damages." (*Anderson v. Ford Motor Co.* (2022) 74 Cal.App.5th 946, 963 [citing § 1794, subd. (c), italics added].)

Punitive damages are permitted when the "punitive damages and statutory penalties [a]re based on different conduct that took place at different times." (*Anderson v. Ford Motor Co.* (2022) 74 Cal.App.5th 946, 966.) For example, punitive damages and statutory civil penalties are both permitted when (1) the "punitive damages were based on conduct underlying the fraud/CLRA causes of action and took place before the sale" and (2) the "civil penalty was based on defendant's

		postsale failure to comply with its Song-Beverly Act obligations to replace the vehicle or make restitution when reasonable attempts to repair had failed.” (<i>Ibid.</i>) Case law expressly allows a plaintiff to recover for both “presale fraudulent inducement and the postsale noncompliance with the Song-Beverly Act” when the conduct is distinguishable. (<i>Id.</i>, at 69.) Moreover, “plaintiffs are not prohibited from receiving both an award for punitive damages based on presale fraudulent inducement and a postsale Song-Beverly Act penalty based on willful noncompliance” when they argue “pattern and practice.” (<i>Anderson v. Ford Motor Co.</i> (2022) 74 Cal.App.5th 946, 971–972.) A manufacturer “simply cannot escape liability for both awards by virtue of the fact that it engaged in a pattern or practice of deceitful misconduct throughout the course of the discrete events and conduct.” (<i>Id.</i>, 972–973.) Here, Plaintiff’s claim for punitive damages is based solely on Plaintiff’s fifth cause of action for fraudulent inducement-concealment. Since the Demurrer to the fifth cause of action was sustained with leave to amend, Plaintiff’s claim for punitive damages necessarily fails as well. While the Court tends to agree with Plaintiff that Defendant’s alleged “decision to continue to manufacture, advertise, and sell vehicles with known, widespread defects is one that necessarily implicates the exercise of corporate power,” the Complaint still lacks allegations with the requisite specificity expressly alleging “proof of malice among corporate leaders” and/or “employees who exercise substantial discretionary authority over decisions that ultimately determine corporate policy, such as those decisions that set these general principles and rules.” The Court, however, finds that Plaintiffs could easily cure such defects with an opportunity to amend their Complaint. The Motion to Strike is GRANTED WITH LEAVE TO AMEND.
--	--	--

		Plaintiff is granted 20 days leave to amend. The Case Management Conference is continued to August 27, 2026 at 1:30 p.m. <i>Defendant to give notice.</i>
112	James vs. Subaru of America, Inc., 25-01465353	<i>No tentative posted.</i>
113	Gutierrez vs. Corral, 23-01328797	Plaintiff Mireya Gutierrez moves for an order appointing a referee to effectuate the partition by sale ordered in the Judgment entered on March 3, 2026 in favor of plaintiff. Code of Civil Procedure section 873.010(a) provides: "The court shall appoint a referee to divide or sell the property as ordered by the court." An appointed referee must be disinterested, impartial, and not a party to or a participant in the action. (Code Civ. Proc., § 874.315.) On March 3, 2026, the Court entered Judgment in favor of plaintiff, ordering that the subject property shall be sold pursuant to Code of Civil Procedure section 872.820 and the net proceeds of the sale shall be divided equally between plaintiff and defendant. The Court finds that appointment of a referee to sell the property as ordered is warranted. Thus, the Motion for Appointment of Referee is GRANTED. The parties are ordered to meet and confer on the selection of an impartial and disinterested referee. If the parties reach an agreement on a referee, they shall file a joint stipulation that the Court appoint that person as the referee within 15 days of the date of this order. If an agreement cannot be reached, each party shall submit up to three nominees for appointment as referee within 15 days of the date of this order. Upon receipt of the other party's nominees for appointment, the other party may file any objections to the nominees within 10 days. The Court will then appoint a referee after consideration of the parties' nominees and/or objections. <i>Moving party to give notice.</i>

--	--	--